# FIRST AMENDMENT TO THE ENTERPRISE SERVICE AGREEMENT BETWEEN THE CITY OF PEMBROKE PINES AND VIGILANT SOLUTIONS, INC.

**THIS AGREEMENT,** dated this 10th day of May 2016, by and between:

**THE CITY OF PEMBROKE PINES,** a municipal corporation organized and operating under the laws of the State of Florida, with an address of 10100 Pines Boulevard, Pembroke Pines, Florida 33026, hereinafter referred to as "CITY",

and

**VIGILANT SOLUTIONS, INC.,** a Delaware corporation, with a business address of **2021 Las Positas Court Suite #101, Livermore, CA 94551**, hereinafter referred to as "CONTRACTOR". "CITY" and "CONTRACTOR" may be collectively referred to as the "PARTIES".

**WHEREAS,** the City of Pembroke Pines Police Department has field tested mobile License Plate Reader (LPR) systems and wishes to utilize the Vigilant LPR system as it out performs the other systems; and

**WHEREAS,** Vigilant Solutions utilizes a tiered reseller channel for distribution of its Automated License Plate Reader (ALPR) product line; and,

**WHEREAS,** Vetted Security Solutions is currently Vigilant Solutions' only certified reseller in the South Florida area; and,

**WHEREAS,** on September 16, 2015, the CITY approved the sole source purchase of the Vigilant Intelligence-Led Policing Package with stationary License Plate Reader (LPR) hardware and two compatible mobile LPR trailers from Vetted Security Solutions; and,

**WHEREAS,** the CITY and CONTRACTOR entered into the original enterprise service agreement "Original Agreement" on November 16, 2015 for an initial one (1) year period, commencing on January 16, 2016 and terminating on January 16, 2017; and,

**WHEREAS,** on May 4, 2016, the CITY approved an additional purchase of the Vigilant Intelligence-Led Policing Package with stationary License Plate Reader (LPR) hardware and three compatible mobile LPR trailers and one mobile LPR 3-Camera system from Vetted Security Solutions; and,

**WHEREAS,** the PARTIES desire to amend the Original Agreement to extend term of the agreement for an additional year terminating January 16, 2018 and to revise terms of the Original Agreement; and,

**W I T N E S S E T H**

**NOW, THEREFORE,** for and in consideration of the sum of the mutual covenants and other good and valuable consideration, the receipt of which are hereby acknowledged, the parties hereto agree as follows:

**SECTION 1.** The recitations set forth in the above "WHEREAS" clauses are true and correct and incorporated herein by this reference.

**SECTION 2.** Section III(A), entitled "Term" of the Original Agreement is hereby revised as follows:

A. Term. The ~~initial~~ term of this Agreement shall expire on January 16, 2018 ~~is for one (1) year beginning on the Effective Date (the "Initial Term")~~, unless earlier terminated as provided herein. Sixty (60) days prior to the expiration of the Initial Term and each subsequent Service Period, Vigilant will provide Affiliate with an invoice for the Service Fee due for the subsequent twelve (12) month period (each such period, a "Service Period"). This Agreement and the Enterprise License granted under this Agreement will be extended for a Service Period upon Affiliate's payment of that Service Period's Service Fee, which is due 30 days prior to the expiration of ~~the Initial Term or~~ the existing Service Period~~, as the case may be~~. Pursuant to Section ~~VIII~~ X below, Affiliate may also pay in advance for more than one Service Period.

**SECTION 3.** Section X(B), entitled "Service Fee" of the Original Agreement is hereby revised as follows:

B. Service Fee. Payment of each Service Fee entitles Affiliate to all rights granted under this Agreement, including without limitation, use of the Software Products for the relevant Service Period, replacement of CLKs, and access to the updates and releases of the Software Products and associated equipment driver software to allow the Software Products to remain current and enable the best possible performance. The annual Service Fee due for a particular Service Period is based on the number of current Vigilant issued CLK's at the time of Service Fee invoicing, and which will be used by Affiliate in the upcoming Service Period. A schedule of annual Service Fees is shown below:

| Annual Service Fee Schedule (multiplied by number of CLK's Issued) | | | | | |
|---|---|---|---|---|---|
| | Total# of CLK's under this ESA | 0-14 CLK's | 15-30 CLK's | 31-60 CLK's | Over 60 |
| | Basic Service | $500.00 | $425.00 | $375.00 | $250.00 |
| | Standard (Option# 1) | $725.00 | $615.00 | $540.00 | $365.00 |
| | I LP Subscriber CLK Renewal Fees | $500.00 | $425.00 | $375.00 | $250.00 |

| Annual Service Fee Schedule for Intelligence-Led Policing (ILP) Service Package | | |
|---|---|---|
| Tier | Reaper | Raptor 3 |
| ILP Tier 1 (Option # 2) | ~~$10,630~~ $14,995.00 | ~~$12,500~~ $14,995.00 |
| ILP Tier 2 (Option # ~~3~~2) | ~~$27,260~~ $34,495.00 | ~~$29,500~~ $34,495.00 |
| ILP Tier 3 (Option # 2) | ~~$62,390~~ $89,495.00 | ~~$69,500~~ $89,495.00 |
| ILP Tier 4 (Option # 2) | ~~$120,650~~ $154,495.00 | ~~$129,500~~ $154,495.00 |

| ~~Annual Service Fee Schedule for Image Enrollment~~ | | | | |
|---|---|---|---|---|
| ~~# of Images~~ | ~~Up to 250,000~~ | ~~250,001 to 500,00~~ | ~~500,001 to 1 Million~~ | ~~Over 1 Million~~ |
| ~~Per Image Fee~~ | ~~$0.30~~ | ~~$0.25~~ | ~~$0.18~~ | ~~$0.15~~ |

| Annual Service Fee Schedule for Image Enrollment (applicable to FaceSearch/LineUp images only) | |
|---|---|
| 5,000 Images | $750.00 |

**SECTION 4.** Exhibit A of the Original Agreement is hereby repealed and replaced with the attached version of **Exhibit A – Option # 2 ILP Tier Package Components.**

**SECTION 5.** In the event of any conflict or ambiguity by and between the terms and provisions of this First Amendment, and the Original Agreement, the terms and provisions of this amendment shall control to the extent of any such conflict or ambiguity.

**SECTION 6.** The original contract as awarded shall remain in full force and effect except as specifically amended by this First Amendment.

**SECTION 7**. Each Exhibit referred to in the Original Agreement, except as repealed herein, forms an essential part of this Agreement. The exhibits, if not physically attached, should be treated as part of this Agreement and are incorporated herein by reference.

**IN WITNESS OF THE FOREGOING**, the parties have set their hands and seals the day and year first written above.

ATTEST:

**CITY:**

CITY OF PEMBROKE PINES

5/10/16

BY: Charles F. Dodge

MARLENE D. GRAHAM,
CITY CLERK

CHARLES F. DODGE
CITY MANANGER

APPROVED AS TO FORM

OFFICE OF THE CITY ATTORNEY

**CONTRACTOR:**

WITNESSES

**VIGILANT SOLUTIONS, INC.**

BY: Steven C. Cintron

Print Name: Steven C. Cintron

Title: Chief Financial Officer

Print Name

James Capp

Genet Sitot

Print Name

STATE OF _____)
) ss: COUNTY OF _____)

**BEFORE ME**, an officer duly authorized by law to administer oaths and take acknowledgments, personally appeared _____ as _____ of **VIGILANT SOLUTIONS, INC.,** an organization authorized to conduct business in the State of Florida, and acknowledged execution of the foregoing Agreement as the proper official of **VIGILANT SOLUTIONS, INC.,** for the use and purposes mentioned in it and affixed the official seal of the corporation, and that the instrument is the act and deed of that corporation.

**IN WITNESS OF THE FOREGOING**, I have set my hand and official seal at in the State and County aforesaid on this _____day of _____, 2016.

_____
NOTARY PUBLIC

_____
(Name of Notary Typed, Printed or Stamped

please See Attachment of California All-purpose Acknowledgment for Notary.

**CALIFORNIA ALL-PURPOSE ACKNOWLEDGMENT** **CIVIL CODE § 1189**

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California )
County of Alameda )

On April 25th 2016 before me, K.M. BHATT (NOTARY PUBLIC),
*Date* *Here Insert Name and Title of the Officer*

personally appeared Steven charles cintron
*Name(s) of Signer(s)*

who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/~~are~~ subscribed to the within instrument and acknowledged to me that he/~~she/they~~ executed the same in his/~~her/their~~ authorized capacity(~~ies~~), and that by his/~~her/their~~ signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

K. M. BHATT
Commission # 2143124
Notary Public - California
Alameda County
My Comm. Expires Feb 19, 2020

Signature KBhatt
*Signature of Notary Public*

*Place Notary Seal Above*

**OPTIONAL**

*Though this section is optional, completing this information can deter alteration of the document or fraudulent reattachment of this form to an unintended document.*

**Description of Attached Document**
Title or Type of Document: see below Document Date: 04-25-2016
Number of Pages: 4 Signer(s) Other Than Named Above: N/A

**Capacity(ies) Claimed by Signer(s)**

| Signer's Name: self | Signer's Name: |
|---|---|
| ☐ Corporate Officer — Title(s): | ☐ Corporate Officer — Title(s): |
| ☐ Partner — ☐ Limited ☐ General | ☐ Partner — ☐ Limited ☐ General |
| ☒ Individual ☐ Attorney in Fact | ☐ Individual ☐ Attorney in Fact |
| ☐ Trustee ☐ Guardian or Conservator | ☐ Trustee ☐ Guardian or Conservator |
| ☐ Other: | ☐ Other: |
| Signer Is Representing: self | Signer Is Representing: |

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First Amendment to the Enterprise Service Agreement Between the city of Pembroke Pines And Vigilant Solutions, Inc.

Exhibit A: Option # 2 ILP Tier Package Components

| Part # | Item Description |
|---|---|
| **VS-ILP-1M2RE / VS-ILP-1M2R3** | **ILP Mobile Bundle for Agencies of Up to 100 Sworn** Includes:<br>- Agency license for LEARN SaaS<br>- Unlimited access to private LPR data<br>- One (1) 3-camera mobile LPR system<br>- First year of Basic and Standard Service Packages<br>- LEARN-Mobile Companion<br>- Mobile Hit Hunter<br>- Agency license for FaceSearch<br>- Image gallery up to 5,000 images |
| **VS-ILP-1F2RE / VS-ILP-1F2R3** | **ILP Fixed Bundle for Agencies of Up to 100 Sworn** Includes:<br>- Agency license for LEARN SaaS<br>- Unlimited access to private LPR data<br>- Three (3) fixed camera LPR systems<br>- First year of Basic and Standard Service Packages<br>- LEARN-Mobile Companion<br>- Mobile Hit Hunter<br>- Agency license for FaceSearch<br>- Image gallery up to 5,000 images |
| **VS-ILP-2M2RE / VS-ILP-2M2R3** | **ILP Mobile Bundle for Agencies of 51 to 200 Sworn** Includes:<br>- Agency license for LEARN SaaS<br>- Unlimited access to private LPR data<br>- Two (2) 3-camera mobile LPR system<br>- First year of Basic and Standard Service Packages<br>- LEARN-Mobile Companion<br>- Mobile Hit Hunter<br>- Agency license for FaceSearch<br>- Image gallery up to 20,000 images |

| | |
|---|---|
| **VS-ILP-2F2RE / VS-ILP-2F2R3** | **ILP Fixed Bundle for Agencies of 51 to 200 Sworn** Includes:<br>- Agency license for LEARN SaaS<br>- Unlimited access to private LPR data<br>- Six (6) fixed camera LPR systems<br>- First year of Basic and Standard Service Packages<br>- LEARN-Mobile Companion<br>- Mobile Hit Hunter<br>- Agency license for FaceSearch<br>- Image gallery up to 20,000 images |
| **VS-ILP-3M2RE / VS-ILP-3M2R3** | **ILP Mobile Bundle for Agencies of 201 to 700 Sworn** Includes:<br>- Agency license for LEARN SaaS<br>- Unlimited access to private LPR data<br>- Four (4) 3-camera mobile LPR system<br>- First year of Basic and Standard Service Packages<br>- LEARN-Mobile Companion<br>- Mobile Hit Hunter<br>- Agency license for FaceSearch<br>- Image gallery up to 50,000 images |
| **VS-ILP-3F2RE / VS-ILP-3F2R3** | **ILP Fixed Bundle for Agencies of 201 to 700 Sworn** Includes:<br>- Agency license for LEARN SaaS<br>- Unlimited access to private LPR data<br>- Twelve (12) fixed camera LPR systems<br>- First year of Basic and Standard Service Packages<br>- LEARN-Mobile Companion<br>- Mobile Hit Hunter<br>- Agency license for FaceSearch<br>- Image gallery up to 50,000 images |
| **VS-ILP-4M2RE / VS-ILP-4M2R3** | **ILP Mobile Bundle for Fusion Centers and Agencies of 701 to 2000 Sworn** Includes:<br>- Agency license for LEARN SaaS<br>- Unlimited access to private LPR data<br>- Five (5) 3-camera mobile LPR system<br>- First year of Basic and Standard Service Packages<br>- LEARN-Mobile Companion<br>- Mobile Hit Hunter<br>- Agency license for FaceSearch<br>- Image gallery up to 100,000 images |

| | |
|---|---|
| **VS-ILP-4F2RE / VS-ILP-4F2R3** | **ILP Fixed Bundle for Fusion Centers and Agencies of 701 to 2000 Sworn**<br>Includes:<br>- Agency license for LEARN SaaS<br>- Unlimited access to private LPR data<br>- Fifteen (15) fixed camera LPR systems<br>- First year of Basic and Standard Service Packages<br>- LEARN-Mobile Companion<br>- Mobile Hit Hunter<br>- Agency license for FaceSearch<br>- Image gallery up to 100,000 images |